

MEMORANDUM TO THE FILE

Subj: USE OF OTHER THAN FULL AND OPEN COMPETITION FOR AN ACQUISITION UNDER THE SIMPLIFIED ACQUISITION THRESHOLD

IDENTIFICATION OF SOURCE:

Vendor Name: Rohde & Schwarz USA, Inc.

Vendor City/State: Columbia, MD

Cage: 82199

Total Dollar Value: [REDACTED]

1. FAR 13.106-1(b)(1)(i) states for purchases not exceeding the simplified acquisition threshold, Contracting Officers may solicit from one source if the Contracting Officer determines that the circumstances of the contract action deem only one source reasonably available (e.g., urgency, exclusive licensing agreements, brand-name or industrial mobilization).
2. As required by FAR 13.106-3(b)(3)(i), this memorandum explains the absence of competition for this acquisition, as only one source will be solicited for this requirement (or for a portion of the requirement) and the requirement is not expected to exceed the simplified acquisition threshold.

II. DESCRIPTION OF ITEM OR SERVICE:

Provide a description of the item or service required, to include its intended use, the name of the required source or brand name, and the required delivery date/period of performance.

Requirement is for the following repairs and calibrations:

Qty (5) Signal and Spectrum Analyzer, PN: FSV40-N, [REDACTED]

[REDACTED]. Delivery date 07/26/2025 In support of [REDACTED]

III. THE DETERMINATION FOR USE OF OTHER THAN FULL AND OPEN COMPETITION IS BASED ON THE FOLLOWING (select applicable area below to open specific form)



A. ONLY ONE RESPONSIBLE SOURCE



B. BRAND NAME



C. UNUSUAL AND COMPELLING URGENCY

25WXP0236

A. ONLY ONE RESPONSIBLE SOURCE (select all that apply):

1. RESTRICTIVE RIGHTS. The source has established proprietary rights, limited rights in data, patent rights, copyrights or secret processes in the item or service required.

2. EXCLUSIVE LICENSING AGREEMENTS. The item or service is only available from the Original Equipment Manufacturer (OEM), or there is only one authorized distributor or technical representative for the OEM.

3. OTHER REASONS. Other reason not identified above. Provide details on mission impact if requirement is not solicited from only one source.

Rohde & Schwarz Signal and Spectrum Analyzers (FSV40N) are currently installed in certified [REDACTED] and used for the acceptance of product. This procurement is for repair of the units with faults or damage. The product must work with existing NSWCC Crane developed [REDACTED] programs used to [REDACTED], after repair. Selection of another manufacturer's product would require the Government to re-write the software, make hardware modifications, and perform correlation testing to qualify a different product. The Government would incur a minimum of [REDACTED] of additional costs to qualify a different product and delay the ability to field the units by at least [REDACTED].

1.) All electrical and physical characteristics of the Signal and Spectrum Analyzers have been accounted for in the design of the [REDACTED] and have been certified for test by [REDACTED]. 2) Selection of another repair and calibration facility for these Signal and Spectrum Analyzers risks the unsatisfactory result of non-compliance to Navy MET/CAL calibration requirements for this unit. Non-compliance to Navy MET/CAL requirements would result in the scrapping of these units and requiring replacement at an estimated cost of [REDACTED] per unit. If replacement of these Signal and Spectrum Analyzers is required, the operational availability of [REDACTED] will be compromised until funding is available to purchase a replacement. Replacement will take [REDACTED]. Additionally, the Spectrum Analyzers must be compatible in all aspects (form, fit, and function) with existing units presently installed.

B. BRAND NAME. Item required must be a brand name product, or feature of a product, particular to one manufacturer.

C. UNUSUAL AND COMPELLING URGENCY. The supplies or services are of such unusual and compelling urgency that the Government would be seriously injured unless the agency is permitted to limit the number of sources from which it solicits, bids, or proposals. Urgent requirements are supplies or services that will result in a work stoppage, or are mission critical and the routine processing time would result in injury to the Government. The determination that the procurement for the above item/service is an urgent and compelling requirement is based on the following:

1. Date on which the requirement was first identified:
2. Required delivery date/period of performance
3. Explanation of why delivery/commencement of services by the date mentioned above is required:
4. If appropriate, include any additional pertinent information.

IV. CERTIFICATION/APPROVALS:

A. Technical / Requirements Certifications: I certify that the facts and representation under my cognizance which are included in this justification are complete and accurate to the best of my knowledge and belief.

[Redacted Signature]

Signature

Name (Printed) / Phone #

Date

B. Certification / Approval

Upon the basis of the above statements and information justification, I hereby approve, as the Contracting Officer, the solicitation of the proposed procurement(s) using other than full and open competition.

FICKLIN.ANDREW.
BRENT [Redacted]
[Redacted]
Digitally signed by
FICKLIN.ANDREW.BRENT [Redacted]
Date: 2025.03.18 10:21:14 -04'00'

Andrew Ficklin / 812-381-3258

03/25/2025

Contracting Officer Signature

Name (Printed) / Phone #

Date